

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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MARIO CABALLERO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
PEDRO LEZCANO (Shield # 17113), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 15, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER PEDRO LEZCANO (Shield # 17113), 52nd Precinct, 3016 Webster Avenue, Bronx,
NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
MARIO CABALLERO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
PEDRO LEZCANO (Shield # 17113), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-10 (names
and numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Mario Caballero**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected him to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Mario Caballero is a resident of the State of New York, Bronx County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER PEDRO LEZCANO, assigned Shield # 17113, employed with the 52nd Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER PEDRO LEZCANO (Shield #17113) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on October 21, 2020.

STATEMENT OF FACTS

15. On January 16, 2020 at approximately 5:30 p.m. in the area of East 193rd Street and Webster Avenue in the Bronx, New York, several police officers from the 52nd Precinct Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Pedro Lezcano (Shield # 17113), and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Caballero.
16. On January 16, 2020 at approximately 5:30 p.m., Plaintiff was driving his car with two passengers. While driving in the area of East 193rd Street and Webster Avenue in the Bronx, NYPD officers, without consent, an arrest warrant, a lawful search warrant, probable cause, or

reasonable suspicion that plaintiff had committed a crime directed the Plaintiff to pull over. The Plaintiff immediately complied with this order. Plaintiff's car was approached by at least four plainclothes defendant NYPD officers. Plaintiff and his passengers complied with all of the directives given by the defendant officers, including providing a driver's license and registration.

17. Once the defendant officers approached Plaintiff, he was not free to leave.
18. Without the consent of the Plaintiff or his passengers, or reasonable suspicion or probable cause that any infraction or crime had been committed by the Plaintiff or his passengers, Plaintiff and his passengers were ordered out of the car.
19. During the course of the stop, at least one more NYPD unmarked vehicle arrived on the scene, and approximately eight plainclothes defendant officers were present. Without the consent of the Plaintiff or his passengers, and without reasonable suspicion or probable cause that the Plaintiff or his passengers had committed any violation or crime, the Plaintiff's vehicle was searched by defendant officers. Plaintiff did not observe defendant officers remove any items of contraband from the vehicle and Plaintiff was not informed that any contraband was recovered from the vehicle.
20. While the Plaintiff was detained roadside, without his consent, or without reasonable suspicion or probable cause that the Plaintiff had committed any violation or crime, defendant officer Lezcano and/or NYPD Officers John and/or Jane Doe #'s 1-10 illegally searched Plaintiff's person, including placing their hands inside Plaintiff's pockets and down into Plaintiff's underwear.
21. No contraband was recovered from the Plaintiff's person.
22. Despite the fact that the Plaintiff had committed no infractions and had no outstanding warrants, Plaintiff was handcuffed and transported to the 52nd Precinct.

23. Plaintiff's car was driven to the 52nd Precinct by defendant officer Lezcano. Subsequently, when Plaintiff retrieved the car from police custody, he noted and photographed a significant scrape on the side of his vehicle that was not present at the time the car was illegally seized by defendant officer Lezcano and/or John and Jane Doe #'s 1-10 and illegally impounded by NYPD members.
24. Inside the 52nd Precinct, Plaintiff was again subject to an illegal physical search. This time, Plaintiff was handcuffed and taken to a bathroom. At least five defendant NYPD officers were present. Without Plaintiff's consent, Plaintiff's pants were taken down, and a defendant NYPD officer again reached inside of Plaintiff's underwear, which caused Plaintiff significant discomfort, alarm and embarrassment.
25. No contraband was recovered as a result of this illegal and invasive search.
26. Plaintiff was detained at the 52nd Precinct for hours. In addition to being illegally detained therein, and enduring an illegal strip search of his person, Plaintiff was also subject to verbal abuse, including racially disparaging remarks, from defendant officer Lezcano and/or NYPD Officers John and/or Jane Doe #'s 1-10, which caused Plaintiff significant alarm, mental anguish and embarrassment. Plaintiff suffered substantial emotional harm as a result of his time in custody.
27. Plaintiff was transported from the 52nd precinct to Bronx Central Booking.
28. While plaintiff was illegally incarcerated at the 52nd Precinct and Brooklyn Central Booking, defendants falsely and maliciously told the Bronx County District Attorney's Office that Plaintiff had committed the crimes of Criminal Possession of a Controlled Substance in the 7th Degree and Unlawful Possession of Marihuana in the Second Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.

29. Based on the defendant's false statements, the Bronx County District Attorney's office chose to prosecute Plaintiff under docket CR-001430-20BX.
30. Plaintiff was incarcerated for approximately 33 hours. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.
31. On February 25, 2021, the above-stated malicious prosecution terminated in plaintiff's favor when the case against him was dismissed and sealed in its entirety.
32. Prior to dismissal, plaintiff attended multiple court appearances.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

33. Plaintiff repeats and alleges paragraphs 1 through 32 as if fully set forth herein.
34. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
35. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
38. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
39. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
40. Defendants commenced and continued a criminal proceeding against Plaintiff.
41. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.
42. The prosecution and criminal proceedings terminated favorably to plaintiff on February 25, 2021.
43. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
44. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
49. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
50. As a result of the foregoing, plaintiff was subjected to an illegal search and undue force upon his person over the course of the false arrest.
51. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
52. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

- 54. Defendants owed a duty of care to plaintiff.
- 55. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
- 56. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
- 57. All of the foregoing occurred without any fault by plaintiff.
- 58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

- 59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
- 60. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
- 61. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
- 62. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
64. All of the aforementioned acts of defendants LEZCANO and/or NYPD OFFICERS JOHN and JANE DOE” #1-10, their agents, servants, and employees, were carried out under the color of state law.
65. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
67. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
68. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. As a result of the aforesaid conduct by defendant LEZCANO and/or POLICE OFFICERS “JANE or JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants LEZCANO and POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
71. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for her safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
73. Plaintiff was searched by defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 without an individualized reasonable suspicion that plaintiff had committed any crime or in possession of any illicit contraband or any other illegal substances.
74. As a result of the aforesaid conduct by defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 plaintiff’s person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff was in possession of contraband or any illegal

substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiff repeatedly told defendants that he was not consenting to a search at the time of his arrest. Yet, he was subjected to an invasive search requiring him to remove his clothing. Defendant officer improperly placed their hands in his underwear, subjecting him to humiliation and distress.

75. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
77. Defendants LEZCANO and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff, alleging that he committed an unidentified traffic infraction to justify the stop, when in truth, he was not in violation of any traffic law or ordinance. Defendant officers used the false allegation of a traffic infraction in an attempt to justify the unlawful stop and nonconsensual search of his person and vehicle.
78. Defendants LEZCANO and POLICE OFFICERS “JOHN or JANE DOE” #1-10 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office.
79. Defendants LEZCANO and POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
80. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants LEZCANO and

POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

81. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

82. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
83. Defendants LEZCANO and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
84. Defendants LEZCANO and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
85. As a result of the defendants’ failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SIXTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
87. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 misrepresented and falsified evidence before the Bronx County District Attorney, including providing false allegations to the District Attorney that he had committed an unidentified traffic infraction and possessed a controlled substance and marijuana.
88. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 did not make a complete and full statement of facts to the District Attorney, including that the stop of Plaintiff’s car was pretextual.
89. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 withheld exculpatory evidence from the District Attorney.
90. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
91. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.
92. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.
93. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
94. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

95. Defendants LEZCANO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.
96. Defendants LEZCANO and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
97. Specifically, defendants’ LEZCANO and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.
98. Notwithstanding the perjurious and fraudulent conduct of defendants LEZCANO and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about February 25, 2021.
99. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

100. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
101. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
102. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
- G. This is evidenced by the more than 501 civilian complaints of misconduct or abuse made against members of the 52nd precinct through the Civilian Complaint Review Board.

103. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

104. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

105. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
106. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
107. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
108. The acts complained of deprived the plaintiff of his right:
- H. Not to be deprived of liberty without due process of law;
 - I. To be free from seizure and arrest not based upon probable cause;
 - J. Not to have summary punishment imposed upon them; and
 - K. To receive equal protection under the law.

WHEREFORE, MARIO CABALLERO, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 15, 2021

Respectfully submitted:

By: /s/ *Sydney O'Hagan*
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007
NYPD OFFICER PEDRO LEZCANO (Shield # 17113), 52nd Precinct, 3016 Webster Avenue, Bronx,
NY 10467

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 15, 2021

Sydney O'Hagan /s/

Sydney O'Hagan, Esq.